

Court No. - 49

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Petitioner :- Sunil Kumar Bhandula

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Nishant Mehrotra,Pranjal Mehrotra

Respondent Counsel :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Rajesh Dayal Khare,J.

Heard learned counsel for the applicant, Sri Ram Kumar Sharma holding brief of Sri Pankaj Kumar Shukla learned counsel for the opposite party no.2 and the learned AGA for the State-respondent.

The present 482 Cr.P.C. petition has been filed for quashing the proceedings of Special Sessions Trial No.91 of 2006, under Section 135 of Electricity Act, pending before the Special Judge, E.C. Act, district Moradabad.

It is contended by the learned counsel for the applicant that the sole allegation against the applicant is that the seal of the meter was found tampered. Learned counsel for the applicant states that as per the provisions of Clause 8.1(b)(ii) of Electricity Supply Code, 2005, no theft case shall be booked for mere breakage of window glass or old seal of the energy meter. It is thus contended that pursuant to the aforesaid provisions of the Electricity Supply Code, 2005, no first information report could have been lodged against the applicant. It is next contended that the first information report was lodged by the Junior Engineer when in fact as per the the Government Order No.2635/24-P-3-204 dated 5th October 2004 only the Assistant Engineer is competent to lodge the first information report under Section 135 of the Electricity Act.

Sri Ram Kumar Sharma prays for and is granted two weeks time to file counter affidavit. As prayed by the learned counsel for the applicant one week thereafter is granted for filing rejoinder affidavit.

Till the next date of listing, no coercive action shall be taken against the applicant in the aforesaid case.

Order Date :- 12.3.2010

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Court No. - 45

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State Of U.P. And Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Shashi Kant Gupta,J.

As prayed by the learned counsel for the applicant, three weeks and no more time is granted for filing rejoinder affidavit in the matter.

List immediately thereafter.

Order Date :- 18.8.2017

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Court No. - 78

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Anil Kumar-IX,J.

Vakalatnama filed by Shri Srijan Mehrotra is taken on record.

On the request of learned counsel for the applicant, let the case be listed in the week commencing 20th January, 2020.

Order Date :- 28.11.2019

L.F./21

Court No. - 46

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Naheed Ara Moonis,J.

There is an illness slip of Shri Srijan Mehrotra, learned counsel for the applicant to adjourn the case for the day.

As such, let the case be listed in the next cause list.

Order Date :- 20.1.2020

M. Tariq

Court No. - 88

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal
Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar
Shukla

Hon'ble Sanjay Kumar Pachori,J.

**In Ref: Criminal Misc. Stay Extension Application No. 01 of
2023.**

Sri Anuj Kumar Verma, Advocate holding brief of Sri Srijan Mehrotra, learned counsel for the applicant and learned A.G.A. are present. No one has appeared on behalf of the opposite party no. 2 even in the revised call.

On the request of learned counsel for the applicant, list this case on 22.01.2024.

Order Date :- 4.1.2024

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Court No. - 88

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal

Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar
Shukla

Hon'ble Sanjay Kumar Pachori,J.

List on 27.2.2024.

Order Date :- 22.1.2024

T. Sinha

Court No. - 88

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal
Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar
Shukla

Hon'ble Sanjay Kumar Pachori,J.

In Ref:- Crl. Misc. Stay Extension Application No. 1 of 2023

Sri Ashwani Kumar Patel, Advocate holding brief of Sri Srijan Mehrotra, learned counsel for the applicant and learned A.G.A. for the State are present.

None is present from the side of opposite party no. 2.

The present stay extension application has been filed to extend the interim order dated 12.3.2010.

Learned counsel for the applicants submitted that trial is pending.

Matter is arguable.

Grounds shown are sufficient.

Stay extension application is allowed.

List this case on 8.4.2024.

Interim order dated 12.3.2010 is extended until further orders.

Order Date :- 13.3.2024

A.P. Pandey

Court No. - 82

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal

Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar
Shukla

Hon'ble Saurabh Srivastava,J.

List on 24.04.2024.

Sri Ashwani Patel, learned counsel for applicant is hereby requested to inform learned counsel for U.P. Power Corporation in writing regarding listing of this matter on 24.04.2024.

Order Date :- 16.4.2024

Shaswat

Court No. - 82

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal
Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar
Shukla

Hon'ble Saurabh Srivastava,J.

Heard learned counsel for the parties.

At the very outset, it has been informed by both the learned counsels appearing for the parties that the applicant has already been acquitted and as such no cause of action survives for pursuing the instant application.

Hence, the instant application under section 482 Cr.P.C. is **dismissed as infructuous.**

Order Date :- 21.5.2024

Saif

Court No. - 82

Case :- APPLICATION U/S 482 No. - 6191 of 2010

Applicant :- Sunil Kumar Bhandula

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Nishant Mehrotra,Pranjal Mehrotra,Srijan Mehrotra

Counsel for Opposite Party :- Govt. Advocate,Pankaj Kumar Shukla

Hon'ble Saurabh Srivastava,J.

**Reg: Criminal Misc. Correction Application No.
3 of 2024**

1. Heard Shri Abhay Nitin Singh, learned counsel for the opposite party no.2.
2. This application has been preferred by Shri Abhay Nitin Singh seeking addition of his name as counsel for opposite party no.2 in the order dated 21.05.2024 passed by this court.
3. The application is allowed accordingly.
4. This order shall form part and parcel of the order dated 21.05.2024.

Order Date :- 28.5.2024

Rakesh